

		<i>Plaintiff to give notice.</i>
105	Zhejiang Zheshang Asset Management Co., Ltd. vs. Xinwen, 23-01367893	<i>Off-calendar.</i>
106	Orange Tint, Inc. vs. Lim, 23-01367250	<u>Demurrer to Second Amended Complaint</u> Defendants Andrew Byung Hoon Lim and Optima Window Film demur to Plaintiff Orange Tint, Inc.'s Second Amended Complaint ("SAC") and the causes of action alleged therein. <i>First Cause of Action for Trade Secret Misappropriation</i> Under the California Uniform Trade Secrets Act ("CUTSA"), trade secret misappropriation means improper acquisition, or non-consensual disclosure or use of another's trade secret. (Civ. Code, § 3426.1, subd. (b).) " 'Trade secret' means information, including a formula, pattern, compilation, program, device, method, technique, or process, that: (1) Derives independent economic value, actual or potential, from not being generally known to the public or to other persons who can obtain economic value from its disclosure or use; and (2) Is the subject of efforts that are reasonable under the circumstances to maintain its secrecy." (Civ. Code, § 3426.1, subd. (d).) "With respect to the general availability of customer information, courts are reluctant to protect customer lists to the extent they embody information which is 'readily ascertainable' through public sources, such as business directories. (<i>American Paper & Packaging Products, Inc. v. Kirgan</i> (1986) 183 Cal.App.3d 1318, 1326, 228 Cal.Rptr. 713.)" (<i>Morlife, Inc. v. Perry</i> (1997) 56 Cal.App.4th 1514, 1521.) However, courts will prohibit former employees from using information where the employer has expended time and effort to identify customers with particular needs or characteristics. (<i>Morlife, supra</i>, 56 Cal.App.4th at p. 1521.) "As a general principle, the more difficult information is to obtain, and the more time and resources expended by an employer in gathering it, the more likely a court will find such information constitutes a trade secret. [Citation.]" (<i>Id.</i> at pp. 1521-1522.) A customer list qualifies as a trade secret if it provides a "substantial business